

THE COMPOSITION

CHAPTER 5

CHANGE AND THE LETTER

Our portrait begins to fill itself out. There are themes and topics in the Hebrew Scriptures which are seen in retrospect to constitute the foundations of Judaism, and there are principles which, in the concrete practice of living, are sufficiently important to give up life for. Much of this finds a systematic place in the early survey of Judaism which we passed in brief review in Chapter 3. Yet, although Josephus's account, whether in the treatise *Against Apion* or in his *History of the Jewish War*:

'... might vindicate the claim of Jewish religion and of Jewish history to respect, and perhaps to some sympathy, from the Gentile... neither the fanatical patriotism of the Zealots nor the time-serving of Josephus did anything for the future of Judaism. The future of Judaism was not to lie with those who took the sword in hand, whether those who rebelled in 66 or those who rebelled again, heroically but in vain, under Hadrian. The task of re-creating Judaism fell to a sage and his disciples, to the famous Johanan ben Zakkai. Escaping from Jerusalem before the encirclement was complete, he made his abode at Jamnia, and there in quiet and retirement he meditated and thought, and began the new development of an ancient faith.'

(M. P. Charlesworth, *Five Men*, Harvard, 1936, pp. 87-8)

This 'new development'—if indeed it was a 'development', or 'new'—is what is called summarily the Rabbinic, that is, appertaining to or deriving from (the) Rabbis. The word Rabbi means 'master'; and it was, and is still, applied to any learned Jew, especially one learned in the traditional Law. The 'new development' is therefore admirably symbolized in the received story that Rabbi Johanan ben Zakkai, escaping in a coffin not only from the besiegers but also from the besieged, made his way to the Roman commander and said to him: 'Give me Jamnia [Jabneh, a township near the site of the present airport of Tel-Aviv] and its scholars.'

These scholars who were thus saved for the future and who themselves saved the future, did not form a special class or caste. They were as certainly not a clergy as they were not a civil service. Indeed it seems to have been a point of honour, if not a definite rule, among them not to make their learning a source of income ('a spade to dig therewith') but to have a trade or handicraft from which to earn their livelihood. But it was the scholar who, much like the Biblical 'Ezra the Scribe', became the recognized leader of the people; and we must think of the social organization of Jewry, to the most recent times, as in its ideal shape one of largely autonomous communities under the guidance, *platonico more*, of scholar-kings. As for the nature of their authority, I quote a dry Rabbinic comment on Malachi's priest whose 'lips keep knowledge and men seek the law at his mouth, for he is the messenger of the Lord of Hosts': 'If his lips keep knowledge and men seek the law at his mouth, then he is a messenger of the Lord of Hosts.' Authority is conferred by knowledge. 'Who are kings?', asks a popular Talmudic saying; and answers: 'The Rabbis.'

The principal monument, and the epitome, of Rabbinic creative achievement is the work known comprehensively as the Talmud. This is made up of Mishnah and Gemarah. The Gemarah is commentary. The work commented on is the Mishnah which is thus the basic Rabbinic text. Dated about A.D. 210, it is the

summing up of the post-Biblical experience of Judaism until that time. Primarily it is a corpus of decisions, but it contains also indications of the discussions by which they were reached. Fuller knowledge of this background may be derived from the cognate literature of which the most illuminating are the old Rabbinic commentaries to some parts of the Pentateuch. These represent the work-shop of the Rabbis and show us something of how the basic code was arrived at or derived or developed. Being attached to, and following the order of, the Pentateuchal text, they allow us to watch the process by which the moral idea acquired a legal form.

The Mishnah is easily available to the English reader in the one-volume translation with brief notes of the late Canon H. Danby (Oxford University Press, 1933); the background has been explored by the late George Foot Moore of Harvard in his *Judaism in the First Centuries of the Christian Era* (Harvard University Press, 1927). Talmudic literature (including and starting from the Mishnah) is largely, and in a technical sense, legal. It offers, in a somewhat unsystematic shape, a complete system of law, criminal and civil as well as ceremonial and religious. This is of great interest and importance for the general study of law and it is a quarry not fully worked. Our concern here however is not with legal technicalities but the general ideas underlying the way of life which produced, among other things, Rabbinic law. These are admirably set out in order by Moore. I shall confine myself therefore to a few salient points.

We may start from a phrase used earlier when, following on the line suggested by Josephus, I offered as a rough pointer to the nature of Judaism the suggestion that, in its ideal shape and limit, Judaism may be looked upon as the concern with citizenship in the Kingdom of God. We must now note that one of the characteristics of this Kingdom, according to the view of Judaism, is that it has a written constitution.

Written constitutions (I am speaking generally) cause difficulties. Their very existence would seem to conflict with the

claim to freedom. But freedom is one of the great watchwords not only of the political, but also of the religious, life. Our first task will be to understand the way in which the written constitution of Judaism became, in the hands of the early Rabbis, an instrument not of enslavement but of freedom. Like most teachers, they loved a pun; and they summed up the point themselves very neatly in the remark that the Law of God, 'engraved' (we are told in the Scriptures) on the tablets of stone, was not so much 'engraved' (*haruth*), as 'freedom' (*heruth*).

Our simplest approach will be through a couple of pairs of traditional contraries: the one the oral law as complementary to the written law; the other, Aggadah as complementary to Halachah.

And first, the 'oral' and the 'written'.

The written law is primarily the Pentateuch, particularly the legislative portions of Exodus, Leviticus and Deuteronomy, though other parts of the Scriptures too were drawn on at times. The oral law was the 'tradition of the elders' which adapted the written word to the circumstances of the ever-changing and ever-new present. Its beginnings are manifest in the Pentateuch itself; and it should be thought of not as a mystical appeal like that of Antigone to the 'unwritten laws' of Zeus which are 'not of today nor of yesterday but live for ever and no one knows from what time they were', but rather as concerned with such practical problems as were raised by the fact that Zelophehad the son of Hephher was blessed only with daughters (Num. xxvii and xxxvi).

Once we observe that we have here a practical problem and a legal device to surmount it, it will be apparent that in principle it is not unusual. Something like it is a normal instrument of lawyers of all times. It is akin to the legal principle of 'fiction' by which new cases are brought, often heroically, within the compass of the old. It is a general question of great theoretical interest and practical importance whether the process has a limit. The continued existence and the constant activity of the

Supreme Court of the United States would seem to be based on the assumption that it does not. The Supreme Court often amazes the student of today as he sees to what new uses the words of the Founding Fathers can be put; and so it is with the Rabbis' interpretation of the Bible. I shall not ask how far they made new law or simply applied the old. The same question is debated in our own periodicals about the activity of our own judges. In both cases there is indubitably rejuvenation. All traditionalism needs, and takes, elbow-room; and law, the guarantor of rights and guardian of duties, is traditional by its very nature. So when the Rabbis say: 'Every novelty to be advanced by any scholar at any time in the future was already given to Moses on Sinai', the paradox is a conscious one; and there is a delightful Talmudic story of Moses sitting in the back row of the class of a famous teacher and being amazed at the novelties taught in his—Moses's—name. The 'oral law' was advanced, and accepted, as the explicit drawing out of what in the written law was only implicit; and even when the link was recognized as tenuous or, in the phrase of the Mishnah itself, 'hanging in the air', it gave to a new departure something of the semblance, and authority, of antiquity. As a solution to the problem of change the device was admirable; until the 'oral' law too was written down, and there was need for the process to begin afresh.

My second pair of contraries is Halachah and Aggadah.

Halachah means literally 'walking'. It is the walking in the 'way of the Lord'. Aggadah means literally 'story-telling'. It is all that precedes and accompanies the walk: the desire, the aim, the plan. It is, as it were, the aspiration of which Halachah is the consummation. The modern Hebrew poet Bialik (1873–1934) never tired of saying that Halachah is only Aggadah become fixed; and the idea has been taken up by the learned with varying degrees of agreement and documentation. Aggadah is the flow of hopes and beliefs, ideas and theories, sayings and sentiments, talks and discussions, dreams and fairy tales,

myths and fables, prejudices and preferences and pre-suppositions and whims, which slows down gradually and takes shape in custom and life. The idea may become a symbol, the symbol pass (as so often in the Bible) into symbolic action; action becomes habit, habit a rule and determinant of life. When we are told that the first question which will be asked of each of us when we come to judgement, is: 'Have you dealt honestly?'—we have pure Aggadah. It is a folk-saying with a moral implication. When we read in the old Rabbinic commentary to Leviticus xix, 33 ('And if a stranger sojourn with thee in your land, ye shall not do him wrong'): 'The reference is to wrong *in words*: you must not wound his feeling by reminding him that he is a stranger'—Aggadah is beginning to harden: it is becoming a rule of conduct. But when in the Mishnah the forbidding of doing wrong 'in words' is broadened so as to include any kind of misrepresentation or over-reaching, then Halachah is coming into its own. Its final detail, which amounts to a code of business ethics, occupies many sections in the later handbooks and is full-blown Halachah.

On occasion the process of change from Aggadah to Halachah can be caught frozen in the very act. The Mishnah says that God destroyed the generation of the Flood and scattered the builders of the Tower of Babel because their word could not be trusted; but the statement has no visible evidence in Holy Writ. It is therefore to be classed as Aggadah, a moralizing addition to the text for the purpose of edification. But in the business world there is a space of time between the making of an agreement of sale and the taking possession of the object of sale, which allows a buyer an opportunity for second thoughts. When used unfairly this latitude amounts to the renouncing of the contract and, although legally permissible, is a breach of faith and morally wrong. Since in Jewish law the process of sale is regarded as concluded only when the object of sale is taken in actual possession by the buyer, the opportunities for such breaches of faith are extensive. Even when the buyer has paid the purchase price (but is not yet in possession of the goods)

he may legally still retract; but—says the Mishnah—‘He who exacted punishment from the generation of the Flood and the builders of the Tower of Babel, will exact punishment from anyone who does not abide by his spoken word.’

This moral sentence became a part of judicial procedure. Thus Maimonides writes in his Code: ‘If payment has been made but the goods have not been transferred, although in this case the goods are not, as we have explained, bought, yet whichever side retracts, whether the buyer or the seller, he does not act as a Jew and must accept “He who exacted punishment”’; that is, Maimonides goes on to explain, he is brought before the court and in open court has the formula (amounting to a public curse) pronounced over him; only after that is he allowed to take his money back and break his spoken contract. This is repeated in the later Codes as a regular part of court practice.

This case is remarkable because in it Halachah uses Aggadah as a part of its own procedure, and as an instrument for bringing its own working more in line with moral principle. But whether Halachah is only a later development of Aggadah or originally distinct from it, the two are distinct in practice. The subject of Halachah is positive law: how in concrete detail man should live; the *theory* is Aggadah. And whereas Halachah is communal and obligatory—it is law—Aggadah is personal and a matter of choice; it is suggestive, not prescriptive. Traditional Judaism offers no option with regard to Halachah; but there is no compulsion with regard to Aggadah. Indeed there could not be, since the statements made, and the stories told, and the maxims quoted and quoted again, are often contradictory.

This may puzzle the student at first until he realizes that they were as a rule delivered *ad hoc* and in connexion with a specific set of circumstances; and since they span a period of (possibly) a thousand years and originated in many different countries and environments, it is no wonder that every word of every one author (and very many have no author named) is not necessarily consistent with every word of every other. The English

student would do well to turn to the Rabbinic Anthology of C. G. Montefiore and H. M. J. Loewe (Macmillan, 1938) with its classified extracts from the Aggadic literature. He will see there examples of the various opinions on various topics held by the various teachers of the various epochs and communities, including the two authors of the anthology themselves; and he will learn to wonder, not that there is no complete unanimity among them, but that there is as much unanimity as there seems to be.

It follows—and here we have a result of general interest—that broadly speaking Rabbinical Judaism contains no final pronouncements on the content of belief. When one searches the Talmud for a definition of Judaism itself, for example, one finds little more than the negative, though highly significant, formula that a Jew is one who has repudiated idolatry; but even so there is no indication of the precise character of the idolatry to be repudiated, or of the nature and procedure of the repudiation.

This does not mean that Talmudical Judaism has nothing to say on questions of morals and theology. On the contrary, it is full to bursting with ideas about them. Only—and it is here that we moderns find difficulty—the ideas are not expounded systematically and they are not presented dogmatically. As we shall see, there was a great dogma controversy in Judaism but it came much later, from the thirteenth century on. In the creative period, the period of the so-called bondage to the letter, opinion and judgement were free.

We may take a famous passage, evidently called out by some questioning on what could be called Articles of Faith:

‘R. Simlai said: Six hundred and thirteen commandments were given to Moses, 365 negative commandments, answering to the number of the days of the year, and 248 positive commandments, answering to the number of members of a man’s body. Then David came and reduced them to eleven [Ps. xv]. Then came Isaiah and reduced them to six [Isa. xxxiii, 15].

Then came Micah, and reduced them to three [vi, 8]. Then Isaiah came again and reduced them to two, as it is said, "Keep ye judgement and do righteousness." Then came Amos, and reduced them to one, as it is said, "Seek ye me and live." Or one may say, then came Habakuk and reduced them to one, as it is said, "The righteous shall live by his faith." (Montefiore-Loewe, § 538)

What is remarkable here is not only the rapid reduction of the number of essentials. It is that when we come to the 'one thing necessary' we are not told *how* we are to 'seek God', or (alternatively) 'faith' in *what*.

In a similar way we are admitted at times to discussions of what is the Great Commandment. For example (Montefiore-Loewe, pp. 172, 200):

"Thou shalt love thy neighbour as thyself." R. Akiba said: That is the great principle in the Law. Ben Azzai said: The sentence, "This is the book of the generations of man" (Gen. v, 1) is even greater.' (For the fuller text see below, p. 173.)

Or,

'Bar Kappara taught: Which is the shortest passage in Scripture upon which all the essentials of the Law depend? It is: "In all thy ways acknowledge God, and He will direct thy paths."' (Prov. iii, 6)

Or,

'A heathen came to Shammai and said to him, "Accept me as a proselyte on the condition that you teach me the whole Law while I stand on one foot." Then Shammai drove him away with the measuring rod which he held in his hand. Then he went to Hillel, who received him as a proselyte and said to him, "What is hateful to you do not to your fellow: that is the whole Law; all the rest is its explanation; go and learn."'

One could go on quoting indefinitely and there is no doubt such discussions contain material of great doctrinal interest. But the point is that of the various opinions given we are never told (and there is no one to tell us) which is correct or binding, or what is to happen to us if we accept no single one of them.

This freedom was due largely to the existence of the letter of the law. So long as the letter was preserved, the essence was safe and ingenuity could always cope with novel situations. To go back to my earlier formula, it was the permanence of the 'written constitution' which allowed the development of the Kingdom and guaranteed for its citizens the freedom of 'life under law'.

Historically speaking it is the 'Shema'—'Hear, O Israel, the Lord our God, the Lord is one' (Deut. vi, 4; see below, pp. 191 ff.)—which became the rallying-cry of Judaism, in spite of the fact that, characteristically, there is considerable doubt as to its exact meaning and no authoritative ruling as to its 'proper' interpretation. (A glance at the classical Jewish commentators shows even greater diversity than is displayed in the four versions given in the text and margin of the English Revised Version of 1884 and the new American Revised Standard Version.) The nearest to an authoritative Jewish interpretation would seem to be the old Rabbinic gloss (in repudiation of what is now called 'henotheism' or 'monolatry') which says that 'our' God, the God of the Jews, is the 'one' God of all men. But be that as it may, it was for the Rabbis the recital of the Shema which became the sign of the 'taking upon oneself of the yoke of the kingdom of Heaven'.

Yet for the Rabbis, this verbal profession was not enough. They required in addition the assumption of the 'yoke of the commandments'. An avowal of loyalty is worth nothing, they seem to say, unless it is followed by *acts* of loyalty. Avowal without action is empty, just as action without avowal is blind. They point out that the original passage itself goes on to say: 'And thou shalt love the Lord thy God with all thine heart, and with all thy soul, and with all thy might; and these words, which I command thee this day, shall be upon thine heart. . . .' And why this particular sequence? they ask; and answer: 'Because when it says, And thou shalt love the Lord thy God, I do not know how men love God. Scripture adds therefore,

“And these words which I command thee, shall be upon thy heart.” Set these precepts upon thy heart because by so doing thou dost recognize God and cleave to his ways.’

So we love God by keeping his commandments; but that does not mean that God is not loved. The keeping of the precepts of the law is not a substitute for, it is rather the small change of, the love of God. Rabbinic (or any other) Judaism does not banish God in favour of the abstention from pork or the wearing of phylacteries at time of prayer. Rather it is through the abstention from pork and the wearing of phylacteries that it reminds itself of its vocation and its source. Every act of the day becomes in idea a religious act. It is linked to God and has its own appropriate benediction; and the common formula of the benedictions (‘Blessed art thou, O Lord, our God, King of the Universe who sanctified us with his commandments and commanded us to do this or that’) is the emphatic acceptance of the yoke of the Kingdom through a particular instance of the yoke of the commandments.¹

This very formula gives the answer to the question sometimes raised about the existence in Rabbinical Judaism of personal religion. Since every act is referred to God, its performance fosters or even creates the consciousness of the divine. There are some references to more intimate relations. ‘The Divine Presence’, we are told (although the context makes the original meaning uncertain), ‘is everywhere’; or, in a famous, but very dubious, text of the Mishnah (San. vi, 5): ‘When man is sore troubled, what says the Shekinah (Divine Presence)? “My head is ill at ease; my arm is ill at ease.”’ But by and large these form an exceptional, and a vague, penumbra to be seized on only by adepts. It was not in mystic contemplation or metaphysical enquiry but in the performance of the precepts of the Law that the Talmudic Rabbis practised and induced their sense of the nearness of God, and it has been noted by a recent authority that even the professed mystics of the later periods

¹ See further below, pp. 196 ff.

were reticent about their feelings and left very few specimens of spiritual autobiography. Personal religion is by its nature incommunicable, and the Halachah prohibits explicitly and summarily the public teaching of the mysteries of the Creation and the Chariot (Genesis i and Ezekiel i). The Mishnah goes so far as to say that 'whosoever gives his mind to what is above and what is beneath and what was before-time and what will be hereafter, were better not to have been born'! We should not ask for descriptions of the indescribable: 'Men have not heard, nor perceived by the ear, neither hath the eye seen, besides thee, what God worketh for him that waiteth for him.'

I take this verse of Isaiah (lxiv, 4), which the Rabbis understand much in the same way as 1 Cor. ii, 9, of set purpose. It is used by them of eternal life. The days of the Messiah, they say, are like the ordinary days of this life, except that then there will be no oppression of governments; as for the Life to Come — 'no eye hath seen it, O God, but thine'.

It is often said that the doctrine of eternal life is Hellenic, and that Biblical Hebraism (and, following it, Rabbinic Judaism) was satisfied with this life on this earth; but a recent and authoritative treatise on the Fourth Gospel is of the firm opinion that the whole setting of that Gospel, and, in particular, its central theme of Eternal Life, is Hebraic through and through. And indeed no reader of the Psalms can fail to notice in some (though not of course in all) of them the total envelopment of the human by the divine as a consequence of the total submission of the human to the divine, itself the sequel to the yearning of the human for the divine, which is the essence of the whole conception. It is well illustrated in the Rabbinic remark (below, p. 200) that in Proverbs vi, 22-3 the Law is called 'light' because, as opposed to the individual precept (a 'lamp' or 'candle') which is intermittent, it is constant and lights our way throughout eternity: 'When thou walkest' *in this world*, 'it shall lead thee; when thou sleepest' *in death*, 'it shall watch over thee; and when thou awakest' *in the future world*, 'it shall talk with thee'.

Yet even in this connexion the Rabbis retain their characteristic reticence. They give little description of the exact nature of future bliss. There is a saying, made much of late by the philosophers, that the righteous sit with their crowns on their heads and enjoy the brightness of the Divine Presence. There is some mention of a complete destruction for complete malefactors and of one year's purgatory for intermediate cases; some talk of a great feast for the righteous on the flesh of mythological animals. But on the whole there is very little, and that is imprecise. 'The hidden things [they were fond of quoting] are to the Lord our God.' So far as man is concerned, the way to the 'yoke of the Kingdom' is through the 'yoke of the precepts', and it is open here and now. 'Men take refuge under the shadow of thy wings. . . . Thou givest them to drink of the river of thy pleasure. . . . With thee is the fountain of life; in thy light do we see light.' The phrases are familiar and contain in themselves a whole world of religious suggestion; but they appear in the Prayer Book as recited at the putting on of the garment of fringes enjoined in the Law. Are they dragged down and degraded into a mumbo-jumbo accompanying a dead and death-dealing ceremony; or is it not rather that the ceremony is suffused with their glad light and through them illumined with the presence of God? It is in this and that rite and ceremony, this and that instance of abstention or enjoyment, that the presence of God can for us be made manifest, so that not only his light becomes theirs but their light, however secondary and derived, in its turn becomes his. It is the everyday things and acts which, in a favourite Rabbinic phrase, lift the eyes to our Father in Heaven. The Rabbis seem to have been so full of the presence of God that they shied from the overtly transcendental. A good story tells how a famous teacher on his death-bed blessed his pupils with the prayer that they should fear God as they feared men. 'No more?' they asked in astonishment. And the reply came: 'Would that it might be as much!'

With that and similar anecdotes and sayings in our minds we may well understand the attitude of Rabbinical Judaism to the doctrine of *Imitatio Dei*. The Rabbis used it; indeed how could they not ('Be ye holy for I the Lord your God am holy')? Yet they gave it just that twist of practical morals which we have seen emerge throughout the course of our enquiry. Of many passages I quote from the old Rabbinic commentary on Deuteronomy xi, 22 ('For if ye shall diligently keep all this commandment which I command you, to do it: to love the Lord your God, to walk in all his ways, and to cleave unto him'):

'*To walk in his ways*: These are the ways of the Holy One, blessed be he, as it is written, The Lord, the Lord, a God full of compassion and gracious, slow to anger and plenteous in mercy and truth; keeping mercy for thousands, forgiving iniquity and transgression and sin; and clearing [the guilty].¹ Similarly it says,² *Whosoever shall be called by the name of the Lord shall be delivered*. But how is it conceivable that a man should be called by the name of God? The meaning is that just as the Ever-present is called compassionate and gracious, so be thou compassionate and gracious and give gifts to all without expectation of return; just as the Holy One, blessed be he, is called righteous, so be thou too righteous, so be thou too kind. . . . *And to cleave unto him*: And how is it conceivable, that a man should ascend on high and cleave to him? Is it not already said, The Lord thy God is a consuming fire, and, His throne is fiery flames and the wheels thereof burning fire? But it means: cleave to the wise men and the disciples, and I shall account it unto thee as if thou hadst ascended on high. . . .'

So to 'imitate God' is to be merciful and compassionate and generous, and to 'cleave to God' is to attend the schools and learn; and the matter is clinched with a saying of the 'ancient

¹ By an instructive tour-de-force of exegesis, the list of divine attributes is made to stop at the affirmative which is inserted, by a common Hebrew idiom, to give emphasis to a following negative. The text itself, when the negative is included, reads: 'And who will *by no means* clear' [the guilty]. For the nature of the exegesis see below, p. 85.

² Joel ii, 32, the Hebrew verb being apparently read in the passive.

expositors': 'If it be thy wish to know him who brought the world into being by his word, learn Aggadah, for from it thou dost learn of God and cleave to his ways.'

So we come back, through the *Imitatio Dei*, to the duty of study. If truth is enshrined in a written text, that text must be taught and learned. 'Turn in it and turn in it for all is in it; and meditate on it and grow old in it and grow grey over it'—so we are told in an old popular proverb; and 'it'—too obvious to be specified—is of course Torah, the Law. Study thus becomes a form of worship. It is identified with prayer. At times it is said to be the highest worship, higher even than prayer.

This does not mean that Rabbinical Judaism was an arid intellectualism. 'The All-merciful'—a favourite Rabbinic term for God—(they say repeatedly) 'desires the heart'; or again: 'Precepts must be fulfilled with joy'; or again: 'Lovingkindness [in Ps. xxv, 10] comes before truth.' We are told often of discussions on the comparative value of theory and practice. When they end with the recommendation of theory, it is on the ground that theory leads to practice. Mere theorizing is frowned upon. The action is the thing. What matters finally is what we do.

The stress on the Law and its study in Rabbinical Judaism led to an extraordinary familiarity with the text of Holy Writ; and the use made of it sometimes is in our eyes extraordinary also. Modern exegetes have stared aghast at some of the Rabbis' remarks on Biblical verses, forgetting that they were never offered as exegesis. There are many ways of using texts, and the philologist's way is not the only one. Nor is it always the most illuminating. Rabbinic 'exegesis' is, as often as not, a conscious attachment of a new idea to an old phrase for mnemonic purposes; and it is just where the attachment seems artificial and arbitrary, and especially when it is contrary to the plain sense,¹ that we should be on the look-out for novelty or fresh creation.

¹ E.g. above, p. 84 n. 1, and below pp. 112, 140, 141.

But the Rabbis can be direct too, simple and clear and hard-hitting. Some of their cumulative citations are unforgettable. I quote a homily (Yal. Shim. 591) attached to the verse of Leviticus xviii, 5, 'Ye shall keep my statutes and my judgements which if a *man* do he shall live in them.' The sledgehammer method employed is noteworthy.

'Which if a *man* do: It does not say, which if Priests, Levites or Israelites do, but if a *man*.

'In the same way it says (2 Sam. vii), And this is the law of *man*, O Lord (cf. R. V. margin, v. 19). It does not say the law of Priests, Levites or Israelites, but the law of *man*.

'Similarly it says (Isa. xxvi, 2), Open ye the gates, that the righteous nation which keepeth truth may enter in. It does not say, That Priests, Levites and Israelites, but that the *righteous nation which keepeth truth*, may enter in.

'Similarly it says (Ps. cxviii, 20), This is the gate of the Lord, the righteous shall enter into it. It does not say, Priests, Levites and Israelites, but the *righteous*, shall enter into it.'

There are quoted in addition Ps. xxxiii ('Rejoice in the Lord, O ye righteous; praise is comely for the upright') and Ps. cxxv ('Do good, O Lord, unto those that be good, and to them that are upright in their hearts'); and in each case it is pointed out that the reference is not to Priests, Levites and Israelites but to the good and the upright. The whole is wound up with the aphorism that a non-Jew who occupies himself with the Law is as good as a High Priest.

I am not quoting this passage or this concluding aphorism in proof of any special tolerance on the part of the Rabbis of the Talmud. There were among them both tolerant and intolerant people. Some were crude racialists, some notable humanitarians. Some by a happy spiritual alchemy managed to combine pride in their own heritage with appreciation of that of others. And there were of course historical occasions and varying circumstances which called out different humours in one and the same man. But this passage, and the many others like it, show two things which are sometimes overlooked:

first, the potentialities inherent in the religion of the letter; and second, the potentialities of the letter itself.

We may add one last point. It was the Rabbinic worship of the letter which, paradoxically, saved Judaism from enslavement to authority. In the Talmud and kindred literature the record of previous controversies, and even the names of the disputants, are preserved. This was done of set purpose. It was, we are assured in the Mishnah, in order that the other (and rejected) point of view might not be forgotten. The existence of dissent is recognized and justified.

It is true that in the long history of Judaism these earlier records have been used at times to serve an obscurantist deference to the *status quo*. But the principle stands firm: there is a right to non-conformity, a right attested by the fact that, in the basic code itself, differing opinions are registered and preserved for the instruction of posterity.